

All India Institute of Medical Sciences Regulations, 2019

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Union of India - Act

All India Institute of Medical Sciences Regulations, 2019

UNION OF INDIA

India

All India Institute of Medical Sciences Regulations, 2019

Rule ALL-INDIA-INSTITUTE-OF-MEDICAL-SCIENCES-REGULATIONS-2019 of 2019

Published on 18 October 2019

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All India Institute of Medical Sciences Regulations, 2019

Published vide Notification F. No. 14-3/69(98)/Coordination Cell/Estt.(Part-II), dated 18.10.2019

Last Updated 24th October, 2019

F. No. 14-3/69(98)/Coordination Cell/Estt.(Part-II). - In exercise of the powers conferred by sub-section (1) of section 29 of All India Institute of Medical Sciences Act, 1956 (25 of 1956) and in supersession of the All India Institute of Medical Sciences Regulations, 1999, except as respects things done or omitted to be done before such supersession, the Institute with the previous approval of the Central Government hereby makes the following regulations, namely: -

1.

Short title and commencement.

(1)

These regulations may be called the All India Institute of Medical Sciences Regulations, 2019.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In the regulations, unless the context otherwise requires, -

(a)

"Act" means the All India Institute of Medical Sciences Act, 1956 (25 of 1956);

(b)

"Chairman" means the Chairman of the Governing Body under sub-section (3) of section 10 of the Act;

(c)

"Deputy Director" means the Deputy Director (Administration) of the Institute;

(d)

"Director" means the Director of the Institute appointed under sub-section (1) of section 11 of the Act;

(e)

"Fundamental Rules" means the fundamental rules as applicable to Central Government Servants;

(f)

"General Financial Rules" means the General Financial Rules, 2017 framed and as amended from time to time by the Central Government for financial management and control;

(g)

"President" means the President of the Institute nominated by the Central Government under subsection (1) of section 7 of the Act;

(h)

"Rules" means the rules framed by the Central Government under sub-section (1) of the section 28 of the Act;

(i)

"Schedule" means a Schedule annexed to these regulations;

(j)

"Secretary" means a Secretary of the Institute and the Governing Body;

(k)

"Supplementary Rules" means the Supplementary Rules as applicable to Government servants who are subject to the Fundamental Rules;

(l)

"Treasury Rules" means the Treasury Rules of the Central Government.

(2)

Words and phrases used in these regulations and not defined but defined in the Act shall have the meanings respectively assigned to them.

3.

Powers and Functions of the President.

- The President shall exercise such powers and discharge such functions as are laid down in the Act, the rules and these regulations including Schedule I.

4.

Meetings of the Institute.

(1)

The Institute may meet as often as may be considered necessary by the President for the transaction of the business of the Institute but shall meet at least twice a year.

(2)

(a)

Meeting of the Institute shall be held at the date and time as may be fixed by the President.

(b)

The Proceedings of the meeting shall be circulated to all the members of the Institute by the Director after obtaining the approval of the President and a period of seven days will be given to the members to confirm the proceedings.

(c)

All proceedings of meetings of the Institute shall be entered in a Minutes Book to be maintained by the Secretary for the purpose and each minute shall be signed by the President of that meeting after the same is duly confirmed by the member present.

(3)

For a ordinary meeting of the Institute a notice specifying the place, date and time of the meeting shall be given by the Secretary to the members at least two weeks prior to the date of such meeting either electronically or by speed post. The agenda shall also be sent alongwith the notice of the meeting and where it is not possible, the agenda shall be sent at least ten days before the meeting either electronically or by speed post.

(4)

An extraordinary meeting of the Institute may be called by the President at any time for the transaction of urgent business of the Institute.

(5)

For extraordinary meetings, notices specifying the place, date and time of the meeting shall be sent by the Secretary to the President and the members at least five days before the date of the meeting, under a certificate of posting, if sent by post, or by electronically or by speed post. The agenda shall be sent either electronically or by speed post, at least three days before the meeting.

(6)

An extraordinary meeting of the Institute may be called on a written request of not less than nine members of the Institute within seven days of the receipt of the requisition and the request made by members requisitioned meeting shall indicate the purpose of the meeting.

(7)

In the absence of the President at any meeting of the Institute, the members present shall elect a person from among themselves to preside over such meeting.

(8)

The quorum for a meeting of the Institute shall be seven.

(9)

The President may include in the agenda at any time before or during a meeting (i) fresh items of business; (ii) items supplementary to those included in the agenda; and such items shall also be taken up for consideration.

(10)

Any member desirous of moving any resolution at a meeting of the Institute shall give notice thereof in writing to the Secretary so as to reach him not less than fourteen days before the date of the meeting. When such notice has been given, the proposed resolution shall be circulated immediately by the Secretary to the members and be included in the agenda.

(11)

Members can also participate in the meeting through video conference, after obtaining the prior approval of the Chairman and such participation through video conference will be counted for the purpose of the quorum.

(12)

If any non-official member nominated to the Institute does not participate in three consecutive meetings of the Institute or Governing Body or Standing Committees without any valid reason to the satisfaction of President, his membership shall be terminated with the approval of the President.

(13)

No subject disposed of by the Institute at a meeting shall be brought up again for consideration until after the expiry of one year except in a case where the President or Government certifies that the subject required further consideration in the interest of the Institute.

(14)

A decision given by the President of the meeting on a point of order raised by a member shall be final.

(15)

All decisions of the Institute shall be taken on a majority vote and in case of equality of votes the President shall have a casting vote.

(16)

Any business of the Institute may be transacted by circulation of papers to the members and the President and acted upon, if unanimously approved. The resolution and the action taken thereon shall be placed before the next meeting of the Institute for confirmation.

5.

Constitution of the Governing Body.

- The Governing Body shall consist of the following eleven members, namely: -

(a) President of the Institute.

Chairman;

(b) Director General of Health Services.

Ex-Officio Member;

(c) Representative of the Ministry of Finance.

Ex Officio Member;

(d) Director, All India Institute of Medical Sciences.

Member

(e) One member elected by the members of the Institute from amongst the three members of the Parliament elected to the Institute.

(f) Six members to be elected by the members of the Institute from amongst themselves.

(g) Following permanent Special Invitees: -

(i)

Additional Secretary (in the Ministry of Health and Family Welfare in charge of the Institute);

(ii)

Joint Secretary (in the Ministry of Health and Family Welfare in charge of the Institute);

(iii)

Dean (Academics);

(iv)

Deputy Director (Administration.);

(v)

Senior Financial Advisor.

6.

Powers and functions of Governing Body.

- The Governing Body shall exercise such powers and discharge such functions as are laid down in these regulations including Schedule I.

7.

Powers and functions of Chairman.

- The Chairman shall exercise such powers and discharge such functions are laid down in these regulations.

8.

Meetings of Governing Body.

(1)

The Governing Body may meet as often as may be considered necessary by the Chairman for transaction of its business, but shall ordinarily meet at least thrice a year preferably in the month of January, May and September.

(2)

The proceedings of the meeting shall be circulated to the members of the Governing Body by the Director after obtaining the approval of the Chairman. A period of fourteen days will be given to the members to confirm the proceedings.

(3)

All Proceedings of meetings of the Governing Body shall be entered in a Minute Book to be maintained by the Secretary for the purpose and all minutes shall be signed by the Chairman of the meeting after the same is duly confirmed by the

members present.

(4)

An extraordinary meeting of the Governing Body shall be called on a written requisition by at least six members of the Governing Body or by the Chairman.

(5)

Notice of every meeting of the Governing Body shall be sent by the Secretary to the members of the Governing Body, in the case of an ordinary meeting at least fourteen days and in the case of an extraordinary meeting at least seven days, before the date of the meeting either electronically or by speed post under certificate of posting when sent by post. The agenda of meetings shall be sent under certificate of posting if sent by post or electronically or by speed post at least ten days and five days respectively, before the date of the meeting.

(6)

In the absence of the Chairman at any meeting, the members present shall elect a person from amongst themselves to preside at the meeting.

(7)

Five members shall form the quorum, members can also participate in the meeting through video conference, after obtaining the prior approval of the Chairman and such participation through video conference will be counted for the purpose of the quorum.

(8)

All decisions of the Governing Body shall be taken by a majority vote. In case of equality of votes the chairman shall have a casting vote.

(9)

Any member desirous of moving any resolution at a meeting of the Governing Body shall give notice thereof in writing to the Secretary so as to reach him not less than seven days before the date of such meeting. Such notice when received shall be circulated immediately by the Secretary to the members and be included in the agenda of the meeting.

(10)

Any matter not included in the agenda and of which the notice mentioned in sub-regulation (9) has not been given may be considered at a meeting of the Governing Body with the permission of the Chairman.

(11)

Any business of the Governing Body may be transacted by circulation of papers to the members and Chairman and acted upon if unanimously agreed to. The decision and the action taken thereon shall be placed before the next meeting of the Governing Body for confirmation. In case the resolution is not confirmed by the Governing Body in the next meeting, the action already taken in compliance of the resolution circulated and agreed to by the members shall be valid.

(12)

If a non-official member nominated in the Governing Body remains absent in three consecutive meetings without any valid reason, his membership shall be terminated with the approval of the Chairman.

9.

Terms of office of members of Governing Body.

(1)

The term of office of a member other than an ex-office member of the Governing Body shall be five years subject to his continuance as a member of the Institute and an out-going member shall be eligible for re-election.

(2)

Casual vacancies of elected members shall be filled by election by the Institute for the remaining period of the vacancy.

10.

Allowance to the Chairman and members of the Governing Body, standing committee and ad-hoc committee.

(1)

The Chairman and the members of the Governing Body, the Standing Committees, and ad-hoc committees shall not receive any pay, fee, remuneration or other allowance except travelling and daily allowance for attending meetings.

(2)

The Chairman and the members of the Governing Body and of the standing and ad-hoc committees, if they are officers of the Central or a State Government shall be paid travelling and daily allowances by the Institute at the rate admissible

to them as officers of the Central or the State Government.

(3)

In the case of Chairman and the members of the Governing Body and of standing and ad-hoc committees other than those mentioned in sub-regulation (2), travelling allowance and daily allowance shall be paid at the rates to which they are entitled as per rules of the organisation in which they are working or those prescribed from time to time by the Central Government under Supplementary Rules and the executive decision and orders there under, whichever is more.

(4)

The President may, for special reasons, sanction journeys by air not otherwise admissible by members of the Governing Body and of Standing and ad-hoc committee for such journeys travelling allowance shall be paid at rates admissible to Group 'A' officers of the Central Government.

11.

Powers and duties of Director.

- The Director shall be the Head of Institute in terms of sub-rule (10) of rule 2 of the Supplementary Rules and shall exercise the powers of Head of Institute and discharge the following duties, namely: -

(a)

he shall be in-charge of the administration of the Institute. He shall allocate duties to the officers and employees of the Institute and shall exercise such supervision and executive control as may be necessary subject to the rules and these regulations;

(b)

he shall exercise the powers specified in Schedule I to these regulations;

(c)

he shall have the powers to delegate any of his powers to the officers on the administrative side subject to such limitations as may be imposed by the Governing Body.

12.

Procedure in conducting business of Standing Committees.

(1)

All standing committees shall be advisory committees.

(2)

Fifty per cent of the members shall form the quorum for all standing committee. Members can also participate in the meeting through video conference, after obtaining the prior approval of the Chairman and such participation through video conference will be counted for the purpose of the quorum. In the case of Standing Selection Committee or Combined Selection Committee or Regional selection Committee, the two experts shall also be counted for purpose of determining the quorum.

13.

Building and lands belonging to the Institute.

(1)

The Institute shall use its lands and buildings for the purposes of the Institute.

(2)

The allotment and the assessment and recovery of rent of buildings shall as far as may be made by the Director in accordance with the provisions of rules 45A, 45B and 45C of Fundamental Rules and the Supplementary Rules.

(3)

Every employee of the Institute, if offered residential accommodation in the premises of the Institute shall stay in that residence and pay thereof such rent and other charges as may be fixed by the Institute.

14.

Powers to award prizes, scholarships.

- The Institute may award such prizes, souvenirs, stipends and scholarships to its students as may be decided by the Governing Body from time to time.

15.

Procedure for appointment of Dean and Associate Dean.

(1)

There shall be three Deans, namely, Dean (Academic), Dean (Research) and Dean (Examination). A Professor and

Head of Department shall be appointed as Dean by the Institute taking into consideration the seniority in consultation with the Director.

(2)

There shall be three Associate Deans, namely, Associate Dean (Academic), Associate Dean (Research), and Associate Dean (Examination). Any faculty (Additional Professor or above) can be appointed as Associate Dean by the Institute in consultation with Director. The Associate Dean (Academic) and Associate Dean (Research) shall be appointed from medical faculty only.

(3)

The tenure of the Dean and Associate Dean shall be for a maximum period of three years and further extendable for one more term by the Institute in consultation with Director of the Institute.

(4)

The Deans and Associate Deans shall be appointed from existing faculty members and no additional remuneration shall be paid unless as approved from time to time by the Government of India.

16.

Professorships.

- The Institute may create and appoint persons to Professorships, Additional Professorships, Associate Professorships, Assistant Professorships, Lectureships, Professor cum Principal to College of Nursing, Professor cum Vice Principal to College of Nursing, Associate Professor in Nursing, assistant professor in Nursing and other posts. No post shall be created without the approval of the Government of India.

17.

Power to arrange lectures.

- The Institute may invite experts to deliver lectures in the Institute from time to time on payment of suitable fees or honoraria and pay them travelling allowance at the rates admissible to Central Government employees of similar status for their journey within India.

18.

Fee and other charges.

- All fee and other charges payable by the candidates selected for admission to various courses of Institute shall be as recommended by Academic Committee and approved by the Standing Finance Committee, Governing Body and Institute from time to time.

19.

Admission to courses of studies.

- The reservation for the Scheduled Castes (SC), Scheduled Tribes(ST), Other Backward Classes(OBC), Economically Weaker Sections (EWS) and other categories shall be as per policy laid down by the Government of India from time to time.

20.

Award of degrees.

- The Institute may grant MBBS, MD, MS, Ph-D, DM, M.Ch, MHA, MDS, Fellowship, M.Sc, M. Biotech, B.Sc. (Honours) Human Biology, B.Sc. (Honours) Nursing, B.Sc. Nursing (Post-certificate), B.Sc. (Honours) in paramedical subjects and any other degrees as the Institute may consider desirable with the approval of Standing Academic Committee of the Institute and ratification by the Governing Body .

21.

Conduct of examination (academic as well as recruitment).

- Such number of supervisors, invigilators, examiners (internal or external) and other staff as may be necessary for conducting the examination, paper setting, examination of answer books or thesis, oral and practical of the Institute, may be appointed by the Director and paid remuneration, as recommended by the Academic Committee and approved by the Standing Finance Committee, Governing Body and the Institute from time to time.

22.

Whole time Employees.

- Unless, in any case, otherwise it is distinctly provided, the whole time of an employee of the Institute shall be at the disposal of the Institute and he may be employed in any manner as required by the proper authority of the Institute without claim for additional remuneration.

23.

Permanent and Temporary Posts.

(1)

The posts in the service of the Institute shall be permanent post that is a post carrying a definite rate of pay sanctioned without any limit of time or a temporary post that is a post carrying a definite rate of pay sanctioned for a limited time. A person occupying a permanent post, on appointment to a higher position for a specified period, shall be allowed to retain his lien in the previous post initially for a maximum of five years, extendable for two years or premature repatriation.

(2)

Temporary posts of Resident Doctors shall be governed by the Residency Scheme of the Ministry of Health and Family Welfare in the Government of India as modified from time to time.

24.

Qualifications for appointment.

(1)

Age, experience and other qualifications for appointment to a post under the Institute shall be prescribed by the appointing authority keeping in view the qualifications and experience prescribed by the Central Government for similar posts before applications of candidates are called for subject to the condition that non-medical personnel shall not be appointed to the post of Director to be notified separately from time to time after approval of the appointing authority.

(2)

The Director shall, in filling vacancies in posts and services, under the Institute, make such reservations, in favour of the Scheduled Castes, Scheduled Tribes, Other Backward Classes, Economically Weaker Sections and other categories as may be made by the Central Government from time to time, in filling vacancies in posts and services under the Central Government.

25.

Period of probation.

- Unless otherwise decided by the appointing authority in any case, all employees shall be on probation for two years. During the period of probation, the employee shall be required to put in satisfactory service failing which his services shall be liable to termination at any time without any notice or reason being assigned for the same. The appointing authority may, however, extend the period of probation.

26.

Seniority.

- The seniority of employees of the Institute in each category shall be determined by the order of merit in which they were selected for appointment to the post in question, those selected on an earlier occasion being ranked senior to those selected later.

27.

Leave.

(1)

Temporary and permanent employees of the Institute shall be entitled to such leave and leave salary as are admissible to the corresponding categories of the Central Government servants under the Central Civil Services (Leave) Rules, 1972:

Provided that for the purpose of the Central Government Central Civil Services (Leave) Rules, 1972, the following categories of teaching staff in the Institute or any other post declared as academic post by the standing academic committee and ratified by the Governing Body from time to time shall be treated as serving in the vacation Department, namely:-

(1)

Professor,

(2)

Additional Professor,

(3)

Associate Professor,

(4)

Assistant Professor,

(5)

Medical Superintendent,

(6)

Additional Medical Superintendent,

(7)

Principal, College of Nursing,

(8)

Lecturers in Nursing,

(9)

Senior Nursing Tutors, and

(10)

Tutors in Nursing:

(2)

The regular vacation for the purpose shall be as may be decided by the Governing Body from time to time:

Provided that an incumbent on deputation to the Institute as on foreign service shall be governed by the leave rules as may be stipulated in the conditions of their deputation.

28.

Pension and Contributory Provident Fund.

(1)

The employees of the Institute, except those on deputation on foreign service to the Institute, appointed on or after 12th September, 1975 and such employees as were appointed prior to this date but have specifically opted for the General Provident Fund and pensionary benefits as applicable to the Central Government employees shall be governed by the provisions of the General Provident Fund (Central Services) Rules, 1960 and the Central Civil Services (Pension) Rules, 1972.

(2)

With effect from 1st January, 2004, the date on which the New Pension Scheme was introduced, all new entrants who joined the service of the Institute on or after 1st January, 2004, shall be governed by the New Pension Scheme.

29.

Absence from duty.

- Unless otherwise decided by the President in exceptional circumstances, no permanent employees of the Institute shall be away from his post, otherwise than on leave or because of suspension, for periods and purposes stated in the guidelines approved in this regard from time to time by the Governing Body.

30.

Superannuation.

(1)

The age of superannuation of an employee of the Institute other than teaching faculty shall be sixty years or as specified by the Government of India from time to time:

Provided that the scientific specialists may be granted extension in service, on a case to case basis upto the age of sixty-two years in the case of persons who are exceptionally talented for reasons to be recorded in writing and subject to physical fitness and continued efficiency of the person concerned.

(2)

The age of superannuation of a member of the teaching faculty of the Institute shall be sixty-five years or as specified by the Government of India from time to time.

(3)

Notwithstanding anything contained in sub-regulations (1) and (2), the appointing authority shall be of the opinion that it is in the public interest so to do, have the absolute right to retire any employee of the Institute by giving him a notice of not less than three months in writing or three months pay and allowances in lieu of such notice -

(i)

if he is in Group A or Group B service or post and had entered the service of the Institute before attaining the age of thirty-five years, after he has attained the age fifty years; and

(ii)

in any other case, after he has attained the age of fifty-five years:

Provided that nothing in this sub-regulation shall apply to an employee in Group D service or post who entered the service on or before the 1st December, 1962

(4)

Any employee of the Institute may, by giving notice of not less than three months in writing to the appointing authority, retire from the service after he has attained the age of fifty years, if he is in Group A or Group B service or post and had entered the service of the Institute before attaining the age of thirty-five years, and in all other cases after he has attained the age of fifty-five years:

Provided that, -

(a)

nothing in this sub-regulation shall apply to an employee in Group D service or post who entered service on or before the 1st December, 1962;

(b)

it shall be open to the appointing authority to withhold permission to an employee under suspension who seeks to retire under this sub-regulation.

Explanation. - In this regulation the expression "member of the teaching faculty" means the Professor, Additional Professor, Associate Professor, Assistant Professor, Medical Superintendent, Additional Medical Superintendent, Principal of College of Nursing, Lecturer in Nursing, Senior Nursing Tutor and Tutor in Nursing and other employees of the Institute as may be declared to be members of the teaching faculty by the Central Government from time to time.

31.

Term of office of Director.

(1)

The Director shall have a term of five years from the date of assumption of charge of the post or till he attains the age of sixty-five years, whichever is earlier.

(2)

Notwithstanding anything contained in these regulations, the Institute shall, if it is of the opinion that it is in the public interest to do so, have the right to terminate the term of office of Director at any time before the expiry of his term by giving him a notice of not less than three months in writing or three months salary and allowances in lieu thereof. The Director shall also have the right to relinquish his office at any time before the expiry of the fixed term by giving to the Institute a notice of not less than three months in writing.

32.

Age at recruitment.

- The maximum age of a candidate at the time of recruitment to the service of the Institute shall normally be fifty years for teaching posts and thirty years for non teaching posts or as indicated in the recruitment rules for each post (except for Senior Demonstrators or Senior Residents in all Departments of the All India Institute of Medical Sciences where it shall be thirty-three years or as recommended by the Standing Academic Committee from time to time). This limit is relaxable by the Governing Body.

33.

Conduct, discipline and penalties.

(1)

The Central Civil Services (Conduct) Rules, 1964 as modified from time to time, shall apply to the employees of the Institute.

(2)

Part IV (Suspension), Part V (Penalties and Disciplinary Authorities) Part VI (Procedure for imposing penalties), Part VII (Appeals) and Part VIII (Review) of the Central Civil Service (Classification, Control and Appeal) Rules, 1965 as modified from time to time, shall apply to the employees of the Institute:

Provided that for the purpose of this regulation, -

(a)

Group A, Group B, Group C and D post in the Institute shall correspond to the Central Civil Services Group A, Group B, Group C and Group D post respectively;

(b)

the Appointing Authority, the disciplinary Authority for the penalties that may be imposed and the Appellate Authority for the various posts in the Institute shall be as prescribed in Schedule II;

(c)

in respect of Central or State Government servants borrowed by the Institute, the provision respectively of rules 20 and 21 of the Central Civil Services (Classification, Control and Appeal) Rules, 1965 shall apply and the Institute shall exercise the functions of the Central or State Government, as the case may be, for the purpose of these rules;

(d)

no consultation with the Union Public Service Commission shall be necessary in any case.

34.

Medical facilities for employees.

(1)

The employees of the Institute including deputationists and members of their families shall be entitled to medical aid as admissible under the All India Institute of Medical Sciences Staff Health Scheme. They shall also pay such contribution as are required under that Scheme.

(2)

In the case of retired employees of the Institute and members of their families as well as those employees and their family members who avail medical facilities in places other than the place of the Institute, the Central Services Medical Attendants Rules, 1944 as amended from time to time, shall apply. In case of any difficulty, the re-imbursement of medical expenses incurred in such cases be done as per applicable rates of Central Government Health Scheme.

35.

Other conditions of service.

- In respect of matters not provided for in these regulations, the rules as applicable to the Central Government servants regarding the general conditions of service, pay, allowances including travelling and daily allowances, leave salary, joining time, foreign service terms and orders and decisions issued in this regard by the Central Government from time to time shall apply to the employees of the Institute.

36.

Allotment of Institute residence to employees.

- The employees of the Institute shall be entitled to the allotment of residences at the All India Institute of Medical Sciences in accordance with the provisions laid down by the Institute from time to time.

I

(See regulations 3, 6 and 11)

Extent of Powers

Sl. No.

Nature of Powers

Director

President

Governing Body

Institute

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

1.

Powers of re-appropriation of funds from sanctioned budget

Full Powers

-

-

-

Report of any re-appropriation shall be placed
before the Governing Body for approval in its subsequent meeting.

2.

(a) (i) Write off of loss of irrecoverable value
of stores of public money due to fraud.

Up to Rs. 2,000/- in each case

Rs. 10,000/- in each case

Rs. 20,000/- in each case

Full powers

(b) Loss of revenue or of irrecoverable advance

(c) Deficiencies and depreciation in value of
stores

3.

To incur (i) contingent expenditure, or (ii)
expenditure on the purchase of stores and stationery and printing
of forms.

Full powers within the sanctioned budget.

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-

4.

Maintenance of Building and petty works:

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-

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-

(a) Original works and special repairs

Rs.20,000/ in each case subject to maximum of

Rs. One lakh per year

Rs. 50,000/- in each case subject to maximum of

Rs. 2. 5 lakh per year

-

-

-

(b) Ordinary repairs

Full powers for minor repairs (not annual
repairs)

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-

-

(c) Annual repairs

Full powers

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-

-

5.

Power to sanction recoverable advances
Full powers in respect of all officers and
employees except himself
In case of Director

-
-
-

6.
Power to sanction advances/Final withdrawal out
of the Contributory/ General Provident Fund
Full Powers in respect of all officers and
employees except himself
In case of Director

-
-
-

7.
Destruction of official records connected with
accounts
Full powers subject to the conditions laid down
in Appendix 13 to the General Finance Rules

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-
-

8.
Power to direct the payment on the last working
day of a month that the pay and allowances of employees of the
Institute's where the first four day of the following month are
public holiday
Full powers

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-
-

9.
Power to order the retention of undisbursed pay
and allowances of establishment for any period not exceeding
three months
Full powers

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-
-

10.
To allow mileage allowance by a route other than
the shortest or the cheapest
Full Powers provided selection of the route is
in Institute's interest.

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-

-

-

11.

To permit Group 'D' employees to draw next higher class Railway fare when accompanying an officer on train which provides No. II class

Full powers

12.

To decide whether a particular absence is absence on duty within the country

Full powers for academic purposes and one month in other cases

Full powers beyond one month in all cases other than academic

-

-

-

13.

To impose restrictions on the exchange of daily allowances mileage allowance by Group 'C' and Group 'D' employees, travelling in a public or hired conveyance.

Full powers

14.

To countersign his own travelling allowance bills and those of other employees

Full powers

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-

-

15.

To waive provision (s) to Supplementary Rule 209 and to authorise departures from Supplementary Rule 211 regarding combination of holidays with leave.

Full powers

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-

-

16.

(i) Grant of Casual Leave

Full powers

Casual Leave of the Director.

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-

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(ii) Grant of Leave

Full powers for Group B , C, D, and not more than four weeks for Group A

Full powers for Group 'A' for more than four weeks and full powers in the case of the Director

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(iii) Special disability leave

Full powers

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17.

To direct that an officer on leave shall be
considered to be in occupation of a residence

Full powers for the period of original
deputation or the period of leave sanctioned

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Full powers

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18.

To allot residence

Full powers

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19.

Power to make appointments to posts subject to
rule 7 of the All India Institute of Medical Sciences Rules,
1958.

Full powers

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19

(i) Ad-hoc/ Temporary

Full powers for Group B, C, & D posts

lecturers Assistant Professors and Associate Professors not
exceeding a period of one year.

Full power for all Group 'A' posts other than

Faculty posts. Professor and Additional Professor for a period
not exceeding one year and Lecturers, Assistant Professor and
Associate Professor for a period exceeding one year.

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(ii) Permanent

Group C and D post

Group B posts

Group A posts

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-

20.

Power to confirm Group A & B officers, after successful completion of the period of probation.

Full powers except in the case of the Director

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21.

Power to accept resignation of Group D

employees

Full powers

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22.

Powers to accept resignation of Group "A"

employees

Full powers in respect of all Group "A"

officers except in case of Professor and Additional Professor

Full powers in case of Director, Professor and

Additional Professor

-

In the case of Director subject to ratification

by the Institute

23.

Power to permit the officers of the Institute

while going abroad for attending meeting, conference, seminar, workshop, symposia or for short assignments

Full powers except in the case of Director on

the basis of leave of the kind due and admissible upto the period of thirty days, and that the faculty members concerned receives proper invitations from the sponsors of the meeting

Full powers beyond a period of days in the case of employees and full powers in respect of Director

-

Subject to directions issued by the Central

Government from time to time

24.

Power for treating the absence as on duty for

participation in the International scientific

conferences/symposia/seminars/ abroad by the members of the Faculty

Full powers up to a maximum of fifteen days

inclusive of travel

Full powers beyond a period of fifteen days

-

Subject to directions issued by the Central

Government from time to time

25.

Power to allow retention of lien in the

Institute for employees when they are appointed elsewhere

Full powers for Group C & D posts up to a maximum of two years. One year at a time

Full powers for Group "B" Posts

Full Powers for Group 'A' posts

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26.

Power for fixation of pay of Institute employees under the Rules

Full powers

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27.

Power to permit the officers of the Institute to go abroad in connection with the work of the Institute and treatment of absence as on duty

Full powers up to thirty days provided there are no financial implications other than the periods spent in connection with the work of the institute being treated as on duty

Full powers beyond a period of thirty days

Subject to directions issued by the Central Government from time to time

28.

Power to accept Research grant if these are for durations not exceeding three years.

Full powers subject to the general policy of Government of India

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29.

Power to accept the terms and conditions on foreign service terms in respect of a deputationist of Central/State Government where the terms are of usual nature

Full powers

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30.

Power to grant extension of tenure of senior Residents/Tutors.

Full powers

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31.

Power to grant advance increments on the
recommendations of the selection committee
Full power up to three advance increments
Full powers beyond three advance increments

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32.

Power to grant advance increment under
Fundamental Rules 27 to employees of Research Schemes on their
appointment to regular posts in the Institute
Full powers on to the merit of each case

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33.

Power to relax the provision of Supplementary
Rule 12 where the subsistence allowance to be received is in the
nature of daily allowance and an honorarium is involved
Full powers

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Subject to the directions issued by the Central
Government from time to time

-

34.

To declare an Institute employees to be a
ministerial servant
Full powers

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35.

To suspend a lien
Full powers provided that he is authorised to
take appointments to the posts on which the lien is held
Full powers for all other posts

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36.

To transfer the lien of an Institute employees
from one post to another
Full powers provided that he is authorised to
make appointment to both the posts concerned
Full powers for all other posts

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37.

To transfer an Institute employee from one post to another

Full powers in the case of Group B, C & D employees

Full powers in case of group B employees

Full powers in case of group A employees

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38.

Fixation of pay and allowances of an Institute employees treated as on duty under Fundamental Rule (9) (6) (b)

Full powers in the case of B, C & D

employees

Full powers in case of Group 'A' employees

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39.

Counting extraordinary leave for increments.

Full powers in the case of Group B, C & D

employees

Full powers in the case of Group 'A' employees

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40.

Power to reduce the pay of an officiating Governing Servant

Full powers in the case of Group B, C and D employees

Full powers in the case of Group 'A' employees

41.

To sanction grant of and to permit acceptance of honorarium

Full powers up to a maximum of Rs. 5000/- per annum in each case in accordance with the provisions of rule 46 (B) of Fundamental Rules and Government of India's order issued there under from time to time for all categories of employees. In the case of recurring honoraria this limit applies to the total of recurring payments made to an individual in a year. In case of Group A & Group B employees the matter shall be reported to the Governing Body.

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42.

Power to appoint an employee to hold temporarily to officiate in more than one post and to fix the pay

of subsidiary posts and the amount of compensatory allowance to be drawn.

Full powers subject to rules applicable to similar classes of Central Government Employees.

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43.

To declare the grade of fee paid to part time employees (for purpose of Travelling Allowances)

Full powers

44.

To decide the shortest or cheapest of two or more routes.

Full powers

45.

To allow mileage allowances by a route other than the shortest or cheapest

Full powers provided selection of the route is in Institutes interest.

46.

To decide the point of commencement or end of journey in a station

Full powers

47.

To declare that an Institute employee whose pay does not exceed Rs.300/- per mensem is entitled to lowest class accommodation in a steamer

Full powers

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48.

To declare in case of doubt on hardship the class of steamer accommodation to which an Institute employees is entitled

Full powers

49.

Power to require a medical certificate of fitness before return from leave.

Full powers

Full powers in the case of Director

50.

Extension of leave to cover over-stay

Full powers provided that the employee on leave will on return be under the administrative control of the Institute

Full powers in all other cases

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51.

To sanction transfer to foreign service in India

and to fix the pay in foreign service

Full Powers in respect of Group B, C, and D

employees, subject to the conditions mentioned in column 5

against Serial No. 30 in appendix 4 of the post & Telegraph

compilation of fundamental and supplementary rules Vol.II

Full powers in respect of Group A employees

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52.

To decide the date of reversion of Government

servant who takes leave before reversion from foreign service

Full Powers

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53.

Power to sanction the undertaking of work for

which a fee is offered and the acceptance of a fee

Full powers

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54.

Travel by Air by Officer in relaxation of rules

Full powers in case of Urgency and necessity

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55.

To declare that pay of an Institute employee

includes compensation for all journey by road.

Full powers in the case of Group B, C and D

employees

Full powers in case of Group A employees

56.

Power to grant exemption from the rule limiting

a halt on tour to ten days.

Full powers up to a limit of 30 days

Full powers beyond a period of 30 days

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57.

Power to fix amount of hire or charges where an Institute employee is provided with means of locomotion at the expense of the Institute etc. but pays all the costs of its use of propulsion

Full powers

58.

To grant travelling allowance to non-officials attending commission of enquiry etc. and to fix their grade.

Full powers

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59.

To declare who shall be controlling officer and to make rules for his guidance

Full powers , provided an Institute employee is not declared his own controlling officer

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60.

To grant leave other than special disability leave

Full powers

61.

To grant leave when a medical board has reported that there is no reasonable prospect of the employee being fit to return to duty.

Full powers

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62.

To decide in case of doubt whether a particular employee is serving in a vacation Department

Full powers

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63.

To grant maternity, and hospital leave.

Full powers

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64.

To permit calculation of joining time by a route

other than that which travellers ordinarily use.

Full powers

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65.

To extend joining time within a maximum period of thirty days

Full powers

Full powers beyond thirty days

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66.

Authorising an Institute employee to proceed on duty to any part of India.

Full powers in case of Group B, C and D employees

Full powers in case of Group A employees

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67.

Power to alter in the case of clerical errors in the date of birth recorded in the service rolls of Institute employees

Full powers in case of Group 'C' & 'D' employees

Full power in the case of Group 'A' and 'B' employees

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68.

Power to sanction investigation of claims for arrears of pay etc. which are more than three years but not more than six years old.

Full powers

Full powers in other cases.

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69.

Power to sanction permanent advances in respect of employees other than Director

Full power

Full power in the case of Director

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70.

Power to issue instructions to subordinate authorities in the matter of contingent expenditure.

Full powers

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71.

Disposal of obsolete surplus and unserviceable stores

Full powers

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The Director shall Act on the advice of condemnation Board set up for the purpose by the Institute

72.

Power to vary the terms of repaying of advances granted to Institute employees in exceptional cases

Full powers in cases in which he is competent to sanction the grant of advances provided that in the case of interest bearing advances, the period of repayment not extended.

To all other cases

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73.

Power to sanction advances for purchase of conveyance

Full power in the cases of Institute employees holding permanent posts, subject to the limits and conditions laid down in Rules 199 to 218 of General Finance Rules.

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74.

Power to authorise the sale or transfer of motor vehicles purchased with advance from the institute.

Full powers in cases mentioned in clauses (V) of Rule - 256 of General Finance Rule.

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75.

Power to extend up to a maximum of 24 the number of instalments in which an advances granted for the purchase of a bicycle should be repaid to the Institute.

Full powers

76.

Power to sanction advances to Institute employees on tour, transfer

Full power in case of Institute employees, holding permanent or temporary posts subject to the limits and conditions laid down in Rule 231 to 234 of General Finance Rules

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77.

Power to sanction advances for the lawsuit to which Institute is a party.

Full power

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78.

Power to prescribe the term of security bond to be executed by a subordinate authority, entrusted with the custody of cash, stores.

Full powers

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79.

Power to sanction advances of pay on the eve of important festivals. Under the Treasury Rules

Full powers

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80.

Power to authorise a departure from the provisions of the Rules 109 (1) relating to custody of Institute money.

Full power

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II

(See regulation 33)

The Appointing, Disciplinary and Appellate Authority for the various posts in the Institute

Sl. No.

Description of Posts

Appointing Authority

Authority competent to impose penalty or penalties which it may impose with reference to Rule - 11 of the

Central Civil Services (Classification Control and Appeal) Rules,
1965

Appellate Authority

Disciplinary Authority

Penalties under Rule- 11 of the Central Civil

Services (Classification, Control and Appeal) Rules, 1965.

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1

Group 'A' Posts

(i) Director

Institute subject to Rule - 7 of the All India

Institute of Medical Sciences Rules.

Institute

All, subject to condition that penalties (v) to

(ix) shall not be imposed without the prior approval of the

Central Government

(ii) Other Posts

Governing Body

(a) Governing Body

(b) President

(a) All Penalties

(b) Penalties (i) to (iv)

(a) Institute Governing Body

2

Group 'B' posts

President

(c) President

(d) Director

(c) All Penalties

(d) Penalties (i) to (iv)

(b) Governing Body

(c) President

3

Group 'C' posts

Director

(a) Director

(a) All penalties

(a) President

4

Group 'D' posts

Director

(a) Director

(b) Deputy Director

(Administration) in the case of Institute employees other than
those provided in (c) and (d) below

(c) Medical Super

intendent in the case of All India Institute of Medical Sciences
Hospital employees.

(d) Chief Organiser, Dr. Rajendra Prasad Centre
for Ophthalmic Sciences and Chiefs of other Centres as and when
established by the Institute in the case of the employees working
in the Centres concerned.

(a) All Penalties

(b) Penalties (i) to

(iv)

(c) Penalties (i) to

(iv)

(d) Penalties (i) to (iv)

(a) President

(b) Director

(c) Director

(d) Director

(i)

Authorisation of the Director, All India Institute of Medical Sciences to issue the Charge-sheet and statement of allegation, penalties and suspension orders after obtaining the approval of the Governing Body, the President, All India Institute of Medical Sciences, as the case may be. The notice, the charge-sheet and statement of allegations shall be signed by the Director for and on behalf of the Governing Body or the President, as the case may be, and the documents shall also expressly state this fact. Phrases like "By order of the Governing Body" or "the President" or the "approval by the Governing Body" or the "President" can be used on such documents.

(ii)

Since the Governing Body meeting are fixed at intervals, the Chairman of the Governing Body is authorised to initiate disciplinary proceedings against employees of Group A and faculty members and the final decision on penalty shall be taken in the Governing Body meeting.

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